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May 7, 2018					
FEDERAL MARITIME COMMISSION					

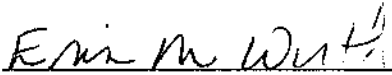
FEDERAL MARITIME COMMISSION

DOCKET NOS. 16-01; 16-07; 16-10; 16-11; 17-09

IN RE: VEHICLE CARRIER SERVICES¹

NOTICE OF FILING

On April 26, 2017, Respondents filed a consolidated motion to dismiss. Respondents cited to five articles in footnotes 13 to 17 at pages 13 to 14 of the brief in support of their motion to dismiss, providing links to websites where the five articles could be found. Some of the articles are behind paywalls and not easily accessible to the general public. On April 16, 2018, at the request of the Office of Administrative Law Judges, Respondents provided courtesy PDF copies of the five articles cited in the brief. To ensure a full, accurate, and accessible record, the PDF copies are attached to this notice of filing.²


Erin M. Wirth
Administrative Law Judge

¹ The caption has been shortened due to the number of cases. See Schedule A for the list of parties to these proceedings.

² Some of the PDF copies contained unrelated material; those pages have been omitted.

BUSINESS NEWS | Fri Sep 7, 2012 | 5:08pm EDT

EU raids car shipping service firms suspected of cartel

The European Commission said on Friday it conducted unannounced inspections of several maritime shipping companies that are suspected of operating a cartel.

The Commission said its officials had carried out the inspections on Thursday in several EU member states but did not name the companies involved. It said the investigation was being coordinated with Japanese and U.S. antitrust authorities.

Earlier on Friday, Norwegian shipping company Wilh Wilhelmsen ASA WWASA.OL said its 50 percent-owned Wallenius Wilhelmsen unit and EUKOR, in which it has a 40 percent stake, were under investigation by EU, Japanese, U.S. and Canadian authorities and were fully cooperating.

The Commission said the companies provided maritime transport services for cars and construction and agricultural machinery.

Danish shipping and oil group A.P. Moller-Maersk ([MAERSKb.CO](#)) said it had not been raided.

The U.S. Justice Department said on Friday it was looking at potentially illegal pricing practices in the ocean shipping of cars, trucks, construction equipment and other products.

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"We are coordinating with the European Commission, the Japanese Fair Trade Commission and other international competition authorities," said spokeswoman Gina Talamona in an email statement.

There is no specific deadline for completing cartel investigations. Their length depends on the complexity of the case and the extent of cooperation.

Nippon Yusen, Wilhelmsen Raided by Antitrust Regulator

Chris Cooper and Kiyotaka Matsuda
September 6, 2012 4:39 AM

Japan's antitrust regulator raided the offices of five shipping lines, including Nippon Yusen K.K. and Wilh. Wilhelmsen ASA, that control about 70 percent of the global market for carrying cars.

Wallenius Wilhelmsen Logistics, a unit of Wilhelmsen, is being investigated in Japan for a possible breach of an anti-monopoly act that involves price fixing, Benedicte Gude, a Lysaker, Norway-based spokeswoman for the company, said in a phone interview today. Nippon Yusen, Mitsui O.S.K. Lines Ltd., Kawasaki Kisen Kaisha Ltd. and Eukor Car Carriers Inc. also said their offices were searched.

Nippon Yusen, the world's biggest owner of car-carrying vessels, plunged fell 5.3 percent to 144 yen, its lowest since at least 1974, at close of trading in Tokyo. About 10 shipping lines are suspected of discussing raising rates together for transporting cars to the U.S., Europe and other parts of Asia from Japan since 2008, Kyodo News reported, without saying where it got the information.

"The key to watch is what kind of fine will be imposed if the commission confirms the allegations," said Minoru Matsuno, president of Value Search Asset Management Co., a Tokyo-based investment advisory firm. "It's difficult to imagine it will cause a vital blow to the companies given their finances."

Fare Trade Commission

The Fair Trade Commission officials entered Nippon Yusen's offices earlier today and the company is cooperating with the investigation, the shipping line's spokesman Jiro Tanida said by telephone. Nippon Yusen isn't aware of the reason for the search, he said.

Offices of Mitsui O.S.K., Japan's second-largest car carrier, were searched by the commission and the shipping line is cooperating, spokesman Yasuyuki Fukuma said by phone. Kawasaki Kisen spokesman Jitsuo Narita and Eukor Car Carriers Inc. spokesman Osamu Tani also said their companies' offices were searched.

Isao Kasubuchi, director of management and planning division at Japan Fair Trade Commission, declined to comment on the investigation.

The five companies are the world's five biggest car-carrying lines, controlling about 70 percent of the global market, according to Nomura Holdings Inc.

Mitsui O.S.K. declined 2.7 percent to 181 yen, while Kawasaki Kisen, Japan's third-largest shipping company, was unchanged at close of trading. Wilhelmsen fell 2.8 percent to 45.7 Kroner at 9:54 a.m. in Oslo.

Nippon Yusen transported 2.92 million vehicles in the fiscal year ended March 31, according to the company. The carrier has predicted it will carry 15 percent more vehicles this fiscal year. The shipping line also forecast a rebound to profit of 20 billion yen (\$255 million) in the year.



FOCUS - 69 of 128 DOCUMENTS

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Agence France Presse -- English

September 7, 2012 Friday 5:34 PM GMT

LENGTH: 150 words

HEADLINE: EU inspectors probing possible sea freight cartels

DATELINE: BRUSSELS, Sept 7 2012

BODY:

Inspectors have made surprise checks of sea transport firms in several EU countries as part of an international probe into suspected cartels, the European Commission said Friday.

The statement said officials had Thursday made "unannounced inspections at the premises of several providers of maritime transport services for cars and construction and agricultural rolling machinery".

The European operation took place in coordination with US and Japanese authorities, the statement added.

The inspections were authorised because officials believed that the companies targetted may have been involved in cartels and restrictive business practices in violation of EU law, said the Commission.

But it added: "The fact that the European Commission carries out such inspections does not mean that the companies are guilty of anti-competitive behaviour; nor does it prejudge the outcome of the investigation itself."

LOAD-DATE: September 8, 2012

Monday April 16, 2018

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Antitrust Watchdog Raids Major Japanese Shipping Firms

Hisane Masaki and Bruce Barnard, Special Correspondents | Sep 06, 2012 12:55PM EDT

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The Japan Fair Trade Commission raided the nation's top three shipping companies — NYK Line, MOL and "K" Line — Thursday for allegedly violating the antitrust law in transporting automobiles and other exports.

All three companies are based in Tokyo.

An NYK Line spokesman told The Journal of Commerce the company was searched by the JFTC on suspicion of violating the antitrust law in exporting automobiles and other goods, including vehicle-type construction machinery. "We will fully cooperate with the JFTC's investigation," he said.

"K" Line also issued a brief statement making a similar confirmation.

An MOL spokeswoman confirmed the JFTC raid to the JOC. "It is true that our company has been searched by the JFTC. We will fully cooperate with their investigation," she said, although she declined to give further details.

The JFTC has not issued any statement.

Citing unidentified sources, Japanese media reports said more than 10 shipping companies, including Wallenius Wilhelmsen Logistics and Korea's Eukor Car Carriers, both subsidiaries of Norway's Wih. Wilhelmsen ASA, were searched on Thursday.

Oslo-based Wih. Wilhelmsen ASA said Wallenius Wilhelmsen Logistics and Eukor, in which it holds 50 percent and 40 percent stakes, respectively, are fully cooperating with the investigation.

The shipping firms are suspected of having formed a cartel to coordinate fare hikes for transporting automobiles and other exports from Japan to Europe, the U.S. and other Asian markets, the reports said.

NYK Line, MOL and "K" Line alone account for more than half of the relevant Japanese market, which is estimated to be worth between 20 billion yen (\$2.55 billion) and 300 billion yen (\$3.82 billion) per annum, The Nikkei reported.

The shipping affiliates of Toyota Motor Corp. and Nissan Motor Co. are also among the companies raided by the JFTC, the Japanese business daily reported.

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Support team at our [Help link \(http://www.joc.com/help\)](http://www.joc.com/help).

Contact Hisane Masaki at yu45535@nifty.com (<mailto:yu45535@nifty.com>) and Bruce Barnard at brucebarnard@hotmail.com (<mailto:brucebarnard@hotmail.com>).

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UPDATE 1: The EU and US have joined Japan's antitrust probe of some of the world's leading car carrier operators.

[Wallenius Wilhelmsen Logistics](#) said in a statement Friday that it has also received requests for information from the E.U. Commission and both [Wallenius Wilhelmsen Logistics](#) and EUKOR have received requests for information from federal U.S. authorities and the [Competition Bureau Canada](#).

In a statement, the EU's antitrust unit confirmed that raids were carried out at "the premises of several providers of maritime-transport services for cars and construction and agricultural rolling machinery."

Meanwhile, Gina Talamona, a spokeswoman for the Justice Department in Washington, also confirmed in an e-mail that the agency's antitrust division "is investigating the possibility of anticompetitive practices involving the ocean shipping of cars, trucks, construction equipment and other products."

"We are coordinating with the European Commission, the Japanese Fair Trade Commission and other international competition authorities," Talamona said, declining to elaborate further.

(Bloomberg) — Japan's antitrust regulator raided the offices of five shipping lines, including Nippon Yusen K.K. and Wilh. Wilhelmsen ASA, that control about 70 percent of the global market for carrying cars.

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-By Chris Cooper and Kiyotaka Matsuda. Copyright 2012 Bloomberg.

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SCHEDULE A

Docket No.	Case Name
16-01	Cargo Agents, Inc., International Transport Management Corp., and RCL Agencies, Inc. v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.), Inc., Kawasaki Kisen Kaisha Ltd., "K" Line America, Inc., Eukor Car Carriers Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Compañía Sud Americana De Vapores S.A., CSAV Agency North America, LLC, Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS, Alliance Navigation LLC, and Nissan Motor Car Carrier Co., Ltd.
16-07	Jill M. Alban, Grant M. Alban, Mary Arnold, Al Baker, Katrina Bonar, Emmett R. Brophy, Steven Bruzonsky, Monica Bushey, Craig Buske, Doda "Danny" Camaj, Stephanie B. Crosby, Melinda Deneau, Jennifer Dillon, Jeffrey L. Gannon, Pamela Goessling, Thomas Goessling, Sean Gurney, Sheryl Haley, Lesley Denise Hart, Bruce Hertz, Elizabeth Ashley Hill née Edwards, Maria Kookan, Adair Lara, Christine Laster, Kori Lehrkamp, Michael Lehrkamp, John Leyva, Joan Macquarrie, Daniel Morris, Tony Nikprelaj, Gustavo Adolfo Perez, Judy A. Reiber, Roberta Rothstein, Jeffrey Rubinstein, Alexandra Scott, Jason Smith, Catherine Taylor, Richard Tomasko, and Demian Vargas v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., "K" Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC
16-10	Rush Truck Centers of Arizona, Inc., Rush Truck Centers of California, Inc., Rush Truck Centers of Colorado, Inc., Rush Truck Centers of Florida, Inc., Rush Truck Centers of Georgia, Inc., Rush Truck Centers of Idaho, Inc., Rush Truck Centers of Kansas, Inc., Rush Truck Centers of North Carolina, Inc., Rush Truck Centers of Ohio, Inc., Rush Truck Centers of Oklahoma, Inc., Rush Truck Centers of Texas, LP, and Rush Truck Centers of Utah, Inc. v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., "K" Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC

16-11	Landers Brothers Auto Group, Inc., Landers Brothers Auto No. 4, LLC v. Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA), Inc., World Logistics Service (USA) Inc., Höegh Autoliners AS, Höegh Autoliners, Inc., Nissan Motor Car Carriers Co. Ltd., Kawasaki Kisen Kaisha, Ltd., “K” Line America, Inc., Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Compañía Sud Americana De Vapores S.A., and CSAV Agency North America, LLC
17-09	Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.P.A. v. Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, Eukor Car Carriers Inc., Nippon Yusen Kabushiki Kaisha, NYK Line (North America) Inc., Mitsui O.S.K. Lines, Ltd., Mol (America) Inc., Kawasaki Kisen Kaisha, Ltd., “K” Line America, Inc., Compañía Sud Americana De Vapores, And Höegh Autoliners AS